LEIGH ANN PATRICIA RUDLAND
and
GLENBEACH INVESTMENTS (PRIVATE) LIMITED
versus
J.F. MAKONI
and
THE CITY OF HARARE'S WORKS AND TOWN PLANNING COMMITTEE
and
THE DIRECTOR OF WORKS, CITY OF HARARE N.O.
and
CITY OF HARARE
and
ENVIRONMENTAL MANAGEMENT AGENCY

HIGH COURT OF ZIMBABWE
MUSITHU J
HARARE: 29 October 2025 & 28 April 2026

Opposed Application-Condonation for non-compliance with Rules

L. Uriri, for the applicants
D. Sigauke, for the 1st respondent
T. Chamisa, for the 2nd, 3rd & 4th respondents

MUSITHU J:

1. Before the court is an application for condonation for non-compliance with r 62(4) of the High Court Rules, 2021 (the rules) and extension of time within which to file an application for review. The decision sought to be challenged on review is that of the second respondent granted on 16 April 2025 but dated 6 May 2024, authorising the first respondent to construct twenty-three (23) double storey cluster housing units on her property. The property is known as Lot 11 of Lot 17C of Borrowdale Estate, also known as No.8 Hedsor Drive, Borrowdale, Harare (hereafter referred to as the property).

2. The application was filed in terms of r 59(1) of the Rules. The applicants seek the court's indulgence to file the application for review outside the eight (8) weeks period commended by r 62(4) of the rules.

The Applicants' Case

3. The first applicant deposed to the main founding affidavit. She became aware that a permit had been issued to the first respondent on 30 May 2025, after she was given a

copy by an employee of the fourth respondent. The third and fourth respondents were accused of being non responsive following repeated requests for the information leading to the granting of the permit.

4. The first applicant is the legal owner and beneficial holder of rights and interests in two pieces of land situate in the District of Salisbury, Called Lot 13 of Lot 17C Borrowdale Estate measuring 1, 6193 Hectares and the Remainder of Lot 17 of Borrowdale Estate measuring 4, 2516 hectares, also known as number 55 Crowhill Road, Borrowdale Estate, Harare.

5. The second applicant is the legal and beneficial holder of rights and interests in a certain piece of land situate in the District of Salisbury, called Subdivision 1 of Lot D of Borrowdale Estate Measuring 2, 6340 Hectares, also known as No. 10 Hedsor Drive, Borrowdale, Harare (the second applicant's property).

6. The two applicants' properties are adjacent and contiguous to the first respondent's property. The first applicant averred that when the first respondent applied for the development permit, she and the second applicant were not served with any notice as was required in terms of the s 26 of the Regional Town and Country Planning Act [*Chapter 29:12*] (the RTCP Act). The permit was issued on 16 April 2024 but dated 6 May 2024. The extent of the delay in filing the application from the date of issuance of the permit was more than eleven (11) months reckoned from 16 April 2024.

7. In February 2025, the first applicant discovered through her daughter, Sarah Macmillan, who is a director and officer of the second applicant residing at the second applicant's property, that there were ongoing construction activities on the first respondent's property. The delay in filing the application was caused by the first and second respondents who did not consult the applicants during the application or issuance of the permit.

8. It was also averred that the first respondent failed to serve the applicants with the permit after he obtained it. That explained why the applicants did not serve the second respondent with any objections when these were due to be made.

9. After the deponent's daughter discovered the ongoing construction works, she sought legal assistance. On 19 February 2025, the first applicant's daughter verbally requested a copy of the housing development permit from the first respondent. No response was availed. On the same day, a similar request was made from the third respondent. There was no response. A follow up letter was served on the third respondent on 27 February

2025. Through a letter dated 3 March 2025, the third respondent served the permit on the former legal practitioners of the deponent's daughter. It turned out to be a wrong permit.

10. Through a letter of 18 March 2025, the said legal practitioners requested a copy of the correct permit and other information from the third respondent. No response was availed. It was further averred that on the same day, the former legal practitioners requested for information from the fifth respondent on whether an environmental impact assessment was done before the housing development permit was issued. No response was received.

11. After failing to get feedback, it was alleged that the deponent's daughter engaged someone in the employ of the fourth respondent for a copy of the permit. Between April and 30 May 2025, a copy of the permit could not be located. The deponent's daughter eventually got a copy of the permit and minutes of the meeting which gave birth to the permit from one of the second respondent's employees on 30 May 2025. Thereafter, the deponent approached her legal practitioners for legal advice on 15 June 2025.

12. The applicants averred that the first respondent's failure to consult and notify them about the application for the development permit, as well as the failure to serve them with the development permit after its issuance by the second respondent, constituted a good explanation for their failure to act timeously. The explanation for the delay was *bona fide* and compensated for the degree of non compliance.

13. The applicants further averred that the prospects of success in the application for review were high, and the decision by the second respondent to issue the first respondent with a housing development permit ought to be set aside for the following reasons.

14. The first reason was that the second respondent, a committee of the fourth respondent did not have the requisite jurisdiction to grant the first respondent a housing development permit to construct twenty three double storey cluster housing units on a Bio Digester on the property. It was contended that the second respondent was not a Local Planning Authority as contemplated by s 26(3) as read with s 10 of the RTCP Act.

15. It was also submitted that the law empowered a Local Planning Authority to issue housing development permits. The second respondent, which was a committee of the fourth respondent, purported to act as the Town Planning Authority. There was no evidence to show that the Town Planning Authority had delegated the powers to the second respondent.

16. The second reason was that there was non-compliance with the Environmental Management Act. It was submitted that even assuming that the second respondent had

the requisite jurisdiction to issue a permit to the first respondent, the second respondent's decision was grossly irregular in that it issued the first respondent a housing development permit to construct twenty three double storey cluster housing units on the property in the absence of an Environmental Impact Assessment Certificate (EIAC) issued by the Director General of the fifth respondent.

17. In terms of the relevant law, an EIAC was a condition precedent or prerequisite to the issuance of permits or licences for all projects listed in the First Schedule of the EMA Act.

18. The third reason was that the applicants' right to be heard was violated. The second respondent's decision was attacked on the ground that it was irregular to the extent that it issued the first respondent the permit without allowing the deponent to make representations. The law placed an obligation on an applicant, at his own expense, to give public notice of the application for a development permit and to serve notice of the application on every owner of properties adjacent to the land to which the application related.

19. The court was urged to grant the application with costs on the punitive scale against the first respondent, if he opposed the application. The justification was that the proceedings would not have been instituted had it not been for the first respondent's conduct.

The First Respondent's Case

20. In her opposing affidavit, the first respondent explained her standing in respect of the property in dispute as follows. The property belonged to her late daughter Tariro Hazel Makoni, who had inherited it from the first respondent's late husband, Herikanos Henry Makoni.

21. The first respondent was appointed executrix dative to her daughter's estate in October 2023. Her daughter died without a husband or children. As the executrix dative, and with the consent of the Master of the High Court, she disposed of the property to Kudwis Investments (Private) Limited and transferred it to the said entity on 24 September 2024.

22. Before the transaction, the first respondent had commenced the process of applying for a cluster permit in respect of the property with the involvement of an expert, one Mr Martin Mugarisi who handled the process. Mugarisi also deposed to a supporting affidavit explaining how the process unfolded.

23. The first respondent also raised the following preliminary points. The first was that the applicants had approached the wrong court. The appropriate court to lodge the complaint

was the Administrative Court in terms of s 38 of the RTCP Act. In terms of s 38(10(a)(i) of that law, any person aggrieved by any decision made by a local planning authority in connection with an application for a permit could within one month from the notification of the decision, appeal to the Administrative Court.

24. The Administrative Court also had the power to suspend the operation of such permit pending the determination of the appeal, upon application. The application for condonation was therefore filed before the wrong court. The present application could not stand, and the court was urged to dismiss it with costs on the punitive scale.

25. The second point concerned the material non joinder of an interested party being. The property in dispute was allegedly transferred to Kudwis Investments (Private) Limited. It was the entity implementing the project together with the developer. Failure to join the property owner amounted to a material non-joinder.

26. The third point was the misjoinder of the first respondent as she was neither the owner of the property nor the one developing it.

27. As regards the merits of the matter, the first respondent denied that the applicants became aware of the permit on the date they claimed it came to their attention. Even assuming that the date was correct, the applicants ought to have lodged their appeal in the Administrative Court by 30 June 2025, as they were within the one month *dies induciae* for noting the appeal.

28. The first respondent denied that there was a basis for overturning the decision. The cluster units were already under construction, with some having been built to deck level. The ripple effects of any nullification of the permit would be devastating.

29. It was also averred that an Environmental Impact Assessment Certificate was issued in respect of the project, and the impact of the project was considered comprehensively. The permit was properly issued. It sought to address the dire housing shortages in the country. At any rate, constructing 23 double storey cluster units on a piece of land measuring 1.2758 hectares could not be considered to be excessive or to cause harm.

30. Attached to the first respondent's opposing affidavit was the supporting affidavit of Martin Mugarisi, a director of Leanvest Properties (Private) Limited. He made the cluster permit application on behalf of the first respondent, who owned the property when the permit application process commenced. A notice of the application was published in the Newsday on 9 December 2023. On 13 December 2023, he personally visited Sarah

Rudland (a director of the second applicant and daughter of the first applicant), to notify her of the intention to develop cluster houses at the property.

31. The deponent claimed that Sarah Rudland welcomed him and they exchanged cellphone numbers and he gave her his business card. He also gave her the notices and notification forms for herself and the first applicant, and she accepted them. Sarah Rudland requested for the advert for the intended development and the lay out plan. These were sent via whatsapp on the same day at 18:15 hours. Sarah was concerned that the proposed development would result in a lot of houses at the property and this was confirmed by a message that she sent to the deponent.

32. On 22 December 2023, Mugarisi met Sarah's father at his offices as he wanted to understand the proposed development. He allegedly offered to buy the property, but the first respondent declined. He also asked Mugarisi to go back to Sarah for her to sign any letters of objection to the proposed development. Sarah refused to sign or acknowledge the forms which he had given her. She preferred to send the forms directly to the fourth respondent. He advised her that this had to be done within the 30 day mandatory period specified in the publication notice and she confirmed that she was aware of the timelines.

33. On 28 December 2023, Mugarisi went to the post office to serve owners of adjacent properties through the registered post as an additional measure to ensure that notice was given. The advert was published on 9 December 2023, and the period ran up to 8 January 2024. No valid objections were received from the applicants despite having been given the requisite notice in good time and having been consulted until about 15 months later. Mugarisi disputed the submission that the applicants were not given notice of the proposed development.

Second to Fourth Respondents' Case

34. The second to fourth respondents urged the court to dismiss the application for lack of merit, arguing that there was no explanation for the delay in acting even after they secured the permit. The delay of fourteen months was inordinate. There was need for finality regarding decisions made by the respondents, and granting the relief sought would cause unnecessary prejudice to the respondents.

35. It was also averred that the applicants' explanation for the delay lacked some elements of truth in it. Even after having the decision in their possession, it still took the applicants about six weeks to file their case. The case had to fall on the basis of the delay which was too inordinate. A lot of development had been done on the land in the past fourteen

months, and such developments were ongoing. Cognisant of the fact that the delay was inordinate, the applicants were curiously overlooking the fact that the project had already commenced. Six months had passed since the date on which the applicants alleged to have observed the construction.

36. The second respondent denied that it had an obligation to consult the applicants. It also denied that it was obliged to serve the applicants with a permit, contending that the application for the permit was the one that needed to be served. The application was also published in a newspaper.

37. The respondents also denied that the letters from the applicants' legal practitioners addressed to the third respondent for the attention of a Ms Mangwiro were ever sent to the third respondent. Ms Mangwiro was not the Director of Works. It was also averred that in response, the third respondent made efforts to furnish the requested information, but in the process made a mistake on the identity of the stands. Such an error was not deliberate.

38. It was also averred that the fourth respondent was permitted to delegate its powers as the local planning authority when such decisions did not involve any permits that required special consent. This was already a residential area. There was therefore no permit that required special consent or for which one could not be delegated. It was further submitted that the source of the second respondent's power had not been put into question.

39. It was further averred that there was nothing in the RCTP Act, which was the law upon which the permit was granted that mandated the second respondent to give the permit only if an environmental impact assessment certificate was issued. What the law only mandated was for a project not to be implemented before an environmental impact assessment was done. Issuing a permit was not implementing a project.

40. The respondents also denied that there was any irregularity concerning the granting of the permit. The applicants should have placed on record, a clear copy of the diagram showing the stands. This would have demonstrated that there was a lot of space between the first respondent and the applicants' properties such that there would be no prejudice to the applicants at all.

41. The second respondent averred that it issued the permit having considered all the factors relating to town planning that it was required to take into account in terms of the law.

The Submissions

42. I shall first dispose of the preliminary points raised by the parties before adverting to the merits of the matter should that become necessary.

Validity of the opposition by the second, third and fourth respondents

43. Mr *Uriri* for the applicants submitted that there was no valid opposition on behalf of the second to fourth respondents because the deponent to the said respondents' affidavit did so on the basis of a blanket resolution which was not specific to the proceedings before the court. Such a resolution was fatally defective and by extension the affidavit which sought to derive authority from such a resolution. Counsel referred the court to the case of *Arosume Property Development (Private) Limited v Mashonganyika & Anor*[1]. It was further submitted that the resolution did not even state that the deponent was authorised to act on behalf of the second and third respondents.

44. It was also averred that the filing of a fully-fledged notice of opposition to the application by the second, third and fourth respondents was irregular. The applicants argued that in review proceedings, where allegations of illegality, lack of jurisdiction, procedural impropriety or bias were made, the presiding officer or arbiter whose decision was sought to be impugned could only file an affidavit to clarify such matters which required clarification. It was not for him to get involved in the merits of the case or defend his decision. It was further averred that the filing of a fully-fledged opposition by the second respondent, who happened to be the arbiter, was irregular and for the reason the second to fourth respondents' opposing papers had to be expunged from the record.

45. In response, Mr *Chamisa* for the second to fourth respondents submitted that the deponent to the opposing affidavit Phakamile Mabhena Moyo deposed to the affidavit in his capacity as the Acting Town Clerk of the fourth respondent. The fourth respondent was the only legal persona, while the second and third respondents were not legal persons at law. The second respondent was merely a committee within the fourth respondent, while the third respondent was also an office within the fourth respondent as well.

46. It was further submitted that sections 136 and 317 of the Urban Councils Act[2] designated the Town Clerk as the highest official in the fourth respondent and was empowered to

[1] HH 143/25
[2] [*Chapter 29:15*]

authenticate documents on behalf of the council amongst other duties. As the Acting Town Clerk, Mr Moyo was statutorily authorised to act on behalf of the fourth respondent and where authorised, to sign documents on its behalf.

47. As regards the point that the second to fourth respondents should not have opposed the application because it concerned a review of the decision of the second respondent, Mr *Chamisa* submitted that the application before the court was one for condonation, and there were no review proceedings yet.

48. The preliminary point raised three separate issues which needed canvassing. The first issue is whether there is a proper resolution authorising the deponent to depose to the affidavit in the first place. The applicants argued that the resolution was too generic in scope as it was not specific to the litigation that the deponent was authorised to act on behalf of the parties that he purportedly represented. The second issue was whether the deponent had even demonstrated that he was authorised to depose to the affidavit on behalf of the second and third respondents. The third point was whether it was irregular for the second to third respondents to oppose the relief sought on the merits since the second respondent was responsible for the impugned decision.

49. Concerning the first issue, the resolution attached to the deponent's opposing affidavit dated 27 February 2025 was worded as follows:

> "**Confirmation of the Town Clerk's Authority to Depose to Affidavits on Behalf of City of Harare in Court Proceedings in Terms of Sections 136 and 317 of the Urban Councils Act [Chapter 29:15]**
>
> His Worship, the Mayor reported on the need for full Council to confirm authority of the Town Clerk or Acting Town Clerk or his chosen representative to dispose to Affidavits in matters involving the City Of Harare at all material times in line with the provisions of sections 136 and 137 of the Urban Councils Act (Chapter 29:15).
> Councillor B.K. Maburutse MOVED as a MOTION seconded by Councillor S.M. Manyenga -
> That the Town Clerk or Acting Town Clerk or his chosen representative be authorised to represent Council in litigation proceedings.
> The MOTION was PUT and CARRIED unanimously.
> **RESOLVED** – accordingly."

50. Section 136(1)(a)(b) provides that the town clerk shall be responsible for the proper administration of the council and managing the operations and property of council. Section 136(2) states as follows:

> "(2) For the purposes of subsection (1), the town clerk, in addition to any other duties that may be assigned to him by the council, shall-
> (a)……..

(b) where so authorised by the council, sign orders, notices, or any document requiring authentication, or execution on behalf of the council; and
(c) ……..
(d) take such steps as he or she considers to be necessary for the purpose of giving effect to any resolution of the council….."

51. Although the resolution was blanket in terms of scope since it was not specific to the present proceedings, it must be read and understood in the context of s 136(2)(b) above. The duties of the Town Clerk are set out in s 136(1) as read with subsection 2 of the Urban Councils Act. All that the Town Clerk or Acting Town Clerk needs to demonstrate is that he acted under the authority conferred upon him by council in terms of s 132 (2)(b) of the Urban Councils Act. What distinguishes the present matter from the authorities cited by the applicants is that in *casu*, the authority of the Town Clerk to act on behalf of council, and the circumstances under which he does so, are set out in 136 of the Urban Councils Act. The fact that the Town Clerk acted on the basis of a blanket resolution becomes inconsequential for as long as he can point to the authority that was conferred under the said provision.

52. The second issue is whether in deposing to the fourth respondent's affidavit, the deponent also did so on behalf of the second and third respondents. The heading to the top page of the notice of opposition referred to the document as the second to fourth respondents' notice of opposition. Similarly, the heading to the opposing affidavit identified it as the second to fourth respondent's opposing affidavit. From a cursory glance, one would be left with the impression that the deposition was made on behalf of all the three respondents. However, nowhere in the body of the affidavit does the deponent state that he also deposed to that affidavit on behalf of the second and third respondents.

53. Mr *Chamisa* for the second to fourth respondents argued that the second and third respondents were not legal persons and they should not have been cited in the first place.

54. The court agrees with Mr *Chamisa's* submission that the citation of the second and third respondents was highly irregular. The two are neither natural nor legal persons. In their founding affidavit, the applicants introduced the second respondent as a committee of the fourth respondent, which issued a housing development permit to the first respondent. The third respondent was introduced as an official of the fourth respondent whose further and better particulars were unknown to the applicants.

55. The mere fact that the second respondent was a committee of the fourth respondent which made the impugned decision did not necessarily render it a legal *persona*, which could sue or be sued. The same applied to the second respondent who was cited as the "DIRECTOR OF WORKS, CITY OF HARARE N.O.". The applicants failed to demonstrate that these two respondents had the requisite legal standing that made them susceptible to a claim as parties to litigation.

56. The second and third respondents ought not to have been cited at all because they do not have the capacity to sue or be sued. Having reached that conclusion, it follows that the deponent to the fourth respondent's opposing affidavit was not obliged to do so on behalf of the second and third respondents since they could not be competently sued as respondents.

57. The **third issue** was that the second to fourth respondents should not have opposed the application because it was one for the review of the decision of the second respondent. It is not clear why this point was raised at all at this stage of the proceedings. The court is not concerned with the application for review at this stage. It is concerned with an application for condonation for non-compliance with the rules of court. The objection was prematurely taken and must fail for being ill-conceived.

Wrong Forum/Failure to exhaust domestic remedies

58. It was submitted on behalf of the first respondent that the application ought to fail because it was brought in the wrong forum. Put differently, the applicants failed to exhaust domestic remedies available to them under s 38 of the RTCP Act. Section 38(1)(a)(i) of the said Act provided that any person aggrieved by a decision made by a local planning authority in connection with an application for a permit may within one month from the notification of the decision appeal to the Administrative Court

59. It was further submitted that the Administrative Court had a wide discretion on appeal and had powers to suspend the operation of such permit pending the determination of the appeal. It was a specialised court which could not be circumvented at will.

60. In response, the applicants dismissed the first respondent's submission as being unsustainable at law and on the facts. It was submitted that in terms of the s 26 of the High Court Act, the High Court had jurisdiction to review decisions made by administrative authorities. The second to fourth respondents fell within the purview of an administrative authority as defined in s 2 of the Administrative Justice Act [*Chapter 10:28*].

61. It was further submitted that the complaints raised by the applicants constituted grounds for review under s 26 of the High Court Act. An appeal could not be made against procedural irregularities.

62. The preliminary point is resolved by s 38(1)(a)(i) of the RTCP Act, which the first respondent's counsel referred to in his submissions. That provision states as follows:

> "**38 Appeals**
> (1) Any person-
> (a) who is aggrieved by any decision made or deemed to have been made by a local planning authority in connection with an application for –
> (i) a permit or preliminary planning permission: or……..
> (ii) ……..
> (iii) ……
> may, within one month from the notification of such decision; or
> (b) …….
> (c) ……..;
> or such longer period as the President of the Administrative Court may in writing authorise, appeal to the Administrative Court in such manner as may be prescribed in rules and the Administrative Court may make such order as it deems fit." (Underlining for emphasis)

63. It is clear from the phrasing of the above provision that an appeal to the Administrative Court is not peremptory. The use of the word 'may' is instructive. That word denotes that an action is optional and not mandatory. It follows that the exhaustion of the domestic remedies that were available to the applicants under that law was not mandatory. Further, as correctly submitted on behalf of the applicants, the application for which condonation is sought is one for review. The High Court has exclusive jurisdiction to deal with applications for review under the common law and statute. The appeal procedure enshrined under the RTCP Act does oust the inherent jurisdiction of the High Court to deal with matters on review. The preliminary point is devoid of merit, and it is hereby dismissed.

Non-Joinder/Misjoinder

64. It was submitted that the application ought to fail because it was brought against a party who had since divested ownership of the property in question. The applicants also failed to cite the present owner of the property who stands to be prejudiced if the relief sought by the applicants was granted. The non joinder of Kudwis Investments (Private) Limited, the registered owner of the property constituted a fatal non joinder, which should lead to the dismissal of the application.

65. In response, the applicants submitted that the permit on record was issued in favour of the first respondent, and not to Kudwis Investments. The applicants also pointed to r 32(11) of the High Court rules which states that misjoinder or non joinder of a party to the proceedings does not defeat a cause.

66. The objection is without merit. The first respondent did not deny that the permit was issued in her favour. The objection was taken in respect of an extent permit. Further, r 32(11) also resolves the issue. It provides that no cause or matter shall be defeated by reason of the misjoinder or non-joinder of any party and the court may in any cause or matter determine the issues or questions in dispute so far as they affect the rights and interests of the persons who are parties to the cause or matter.

67. The party in whose favour the permit was issued is before the court. The application before the court is one for condonation. Is not the actual review itself. The cause of action is founded on the permit, which is the subject of the review matter. If the present application succeeds, then nothing stops the joinder of the Kudwis Investments at that stage of the proceedings.

Material Falsehoods

68. It was submitted on behalf of the first respondent that the present application and the one for review were predicated on falsehoods. Reference was made to the supporting affidavit of Mugarisi and the communication between Mugarisi and the applicants. The applicants were allegedly made aware of the of the application for the permit on 13 December 2023, and both parties acknowledged receipt of the appropriate documents that were sent to them.

69. In response, counsel for the applicants submitted that the objection was not a point *in limine*. It went to the substance of the dispute between the parties.

70. The gravamen of the dispute boils done to the question whether the applicants were aware of the application for the permit. It is the dispute that the court must revolve on the merits. Indeed, upon further reflection, counsel for the first respondent conceded that the point was one on the merits. The preliminary point is accordingly dismissed.

The Merits

71. The applicants summarised the requirements of an application of this nature as follows: the degree of non-compliance and the explanation thereof; the importance of the case; the prospects of success; finality in litigation and the convenience of the court and the avoidance of unnecessary delay in the administration of justice.

72. As regard the degree of non compliance and the explanation thereof, Mr *Uriri* submitted that there was no personal service of the notice of intention to apply for the permit on the neighbours. The supporting affidavit of Mugarisi also acknowledged that one of the people who was allegedly served refused to accept service. Even though registered post was used to effect service, the return of service was supposed to show the name of the person served, the date and time of service.

73. Counsel also submitted that several letters were dispatched to the fourth respondent asking for the permit, but no positive response was forthcoming. In the face of such non-cooperation from the respondents, the applicants had to think of innovative ways of securing the permit. Counsel further submitted that the period of delay from the time that the permit was procured to the time that the application was filed was not inordinate.

74. As regards prospects of success, it was submitted that the minutes of meetings showed that it was the second respondent that made the impugned decision. The committee was supposed to make recommendations to the fourth respondent. It was up to the fourth respondent to accept or reject the recommendations. A committee of the fourth respondent was not the fourth respondent itself. The committee did not have the requisite jurisdiction to grant the first respondent a housing development permit.

75. It was also submitted on behalf of the applicants that even assuming that the second respondent had the requisite authority to issue a permit to the first respondent, the second defendant's decision was irregular in that it issued the housing development permit in the absence of an Environmental Impact Assessment Certificate (the EIAC). The conduct of the second respondent violated s 3 as read with s 97(1) of the Environmental Management Act[3] (the EMA Act). It was further submitted that in terms of s 97(5) of the EMA Act, a licencing authority under any enactment was not authorised to issue a permit in respect of any project listed under the First Schedule of the EMA Act unless an EIAC was issued.

76. In response, Mr *Sigauke* for the first respondent submitted that the applicants failed to satisfy the requirements for an application of this nature. He submitted that the explanation for the delay was dishonest, as the applicants were fully aware of the application from the onset.

[3] [*Chapter 20:27*]

77. Mr *Sigauke* also submitted that the applicants' contention that the permit ought to be preceded by an EIAC was devoid of merit. This was because preliminary permit issued to the first respondent did not give permission to commence construction. It was only after the submission and approval of the formal application and building plans, which required the EIAC that construction would begin.

78. Mr *Chamisa* for the second to fourth respondents submitted that there was no reasonable explanation for the delay. The alleged correspondence requesting information on the issuing of the permit had been directed to the wrong person. Counsel also submitted that the second respondent had the requisite authority to issue a preliminary development permit. Section 12(1) of the RTCP Act permitted the fourth respondent to delegate its powers to a committee, and this was what had been done herein. There was no requirement that there should be proof of delegation. The court was urged to dismiss the application for lack of merit.

Analysis of the merits

79. The application before the court is one for condonation for non-compliance with the rules of court and extension of time within which to file an application for review. The factors to be considered in an application of this nature were summarised in *Doves Funeral Assurance (Private) Limited v Harare Motorways (Private) Limited & 4 Ors*[4] as follows:

- That the delay involved was not inordinate, having regard to the circumstances of the case;
- That there is a reasonable explanation for the delay;
- That the prospects of success should the application be granted are good; and
- The possible prejudice to the other party should the application be granted.

80. In applying the above factors, the court is endowed with discretion to consider each case according to its own peculiar circumstances bearing in mind that there is no one size fits all approach in matters where the exercise of discretion is concerned. In exercising discretion, courts are beholden to the timeless adage that it is the policy of the law that there should be finality to litigation.[5] Courts are also loath to elevate form of over substance. Matters should ideally be determined on their merits, rather than on procedural irregularities in keeping with the principle of finality to litigation.

[4] SC 64/23
[5] *Ndebele v Ncube* 1992 (1) ZLR 288 (S) at 290 C- E

81. It is with the above in mind that the present application must be considered. The period of delay and the explanation for the delay in launching the application for review can hardly be construed to be inordinate and unreasonable bearing the circumstances of the matter. It is not in dispute that there were engagements between the applicants and representatives of the first and fourth respondents.

82. What comes out of the correspondence before the court is that the applicants were desirous to lay hands on information pertaining to the granting of the development permit for the property in dispute. The applicants managed to procure the permit and minutes of the meeting that gave birth to that permit on 30 May 2025. The present application was filed on 10 July 2025, a period of about one month from the time that the information was availed to them. The permit itself had been issued on 16 April 2024. As I have observed, the evidence on record shows that the applicants actively engaged with the fourth respondent from the time they became aware of the construction activities at the first respondent's property.

83. Concerning the prospects of success of the review application, this court is alive to the fact that it is not the review court, and for that reason it must tread with caution. The court must not exceedingly stray into the very issues that the review court must consider. The applicants must demonstrate that the grounds for review establish an arguable case which may persuade the reviewing court to interfere with the decision which is the subject of the review.

84. The application for review raises critical legal questions which have a bearing on the validity of the decision of the second respondent. The pertinent questions are whether: the second respondent had jurisdiction to issue the first respondent with the housing development permit; the permit was issued in compliance with the provisions of the EMA Act; the applicants were denied their right to be heard as interested parties before the permit was issued; the second respondent's decision to issue the development permit offended the provisions of the Administrative Justice Act and the RTCP Act.

85. The reviewing court must interrogate these legal questions that impact on the propriety of the decision to issue the first respondent with a housing development permit. It is for these reasons that the court is satisfied that the application is meritorious and it must succeed.

Costs

86. This application is a precursor to the main application for review which must resolve the substantive dispute between the parties. There is no need to saddle either party with an order of costs at this stage of the proceedings.

Resultantly, it is ordered that:

1. The application for condonation for non-compliance with Rule 62(4) of the High Court Rules, 2021 and extension of time within which to apply for review is hereby granted.
2. The applicants shall file their application for review within ten (10) days of the issuance of this judgment by the Registrar.
3. Costs shall be in the cause.

MUSITHU J: ……

ChimukaMafunga Commercial Attorneys, legal practitioners for the applicants
Prichard Legal Services, legal practitioners for the 2nd-4th respondents
Musengi & Sigauke, legal practitioners for the 1st respondent